



RISE & SHINE ABA LLC

Empowering children to reach their full potential

ELECTRONIC SIGNATURE & ELECTRONIC RECORDS CONSENT

Compliant with the federal E-SIGN Act and NY Electronic Signatures and Records Act (ESRA) · v1.0 · Effective May 2026

1. Purpose

This Consent allows you to receive, review, sign, and store documents from Rise & Shine ABA in electronic form rather than on paper. Federal law (the Electronic Signatures in Global and National Commerce Act, or "E-SIGN" Act, 15 U.S.C. §§ 7001 et seq.) and New York State law (the Electronic Signatures and Records Act, NY State Technology Law §§ 301-309, or "ESRA") give electronic signatures and electronic records the same legal validity as paper signatures and paper records — but only if the parties agree, and only if certain disclosures are provided. This document provides those disclosures and obtains your consent.

2. Documents Covered

Your consent applies to electronic signature on, and electronic delivery of, all employment- and engagement-related documents from Rise & Shine ABA, including but not limited to:

- Offer letters and employment agreements
- Onboarding pack documents (I-9, W-4, IT-2104, NY §195.1 Wage Notice, Direct Deposit Authorization, Background Check Authorization, Emergency Contact, and other onboarding forms)
- The Employee Handbook and acknowledgment of receipt
- HIPAA & Confidentiality Agreement, Non-Disclosure Agreement, Emergency & Incident Reporting Policy
- Sexual Harassment Prevention Policy Acknowledgment, Documentation & Time Recording Acknowledgment, OIG/SAM/OMIG Self-Attestation, RBT Supervision Contract, and similar compliance documents
- Tax forms (annual W-2 and similar)
- Pay stubs, timesheets, schedules, and other recurring records
- Performance reviews, scorecards, corrective action notices
- Notices required to be provided under federal, state, or local law (such as wage notices, sick-leave notices, sexual harassment policy notice, and benefit notices)
- Any other employment- or engagement-related communication or document

3. Your Rights

3.1 Right to Receive Paper Copies

You have the right to receive any document covered by this Consent in paper form instead of, or in addition to, electronic form. To request paper copies, contact HR at info@riseandshine.nyc or (929) 460-9600. There is no fee for paper copies of documents you sign or are required to receive.

3.2 Right to Withdraw Consent

You may withdraw this Consent at any time by submitting a written request to HR. Withdrawal becomes effective once the request is processed (typically within five business days) and applies prospectively only — it does not invalidate any prior electronic signature or any prior electronic delivery. After withdrawal, future documents will be provided in paper form. Withdrawal of consent will not by itself adversely affect your employment, but certain processes (e.g., enrollment in electronic payroll, electronic onboarding) may be slower or unavailable in paper form.

3.3 Right to Update Contact Information

You are responsible for keeping your email address and other contact information up to date so that we can deliver electronic documents to you. To update your contact information, use the HR system or contact HR directly.

4. System Requirements

To receive, review, and sign documents electronically, you will need:

- A device (computer, tablet, or smartphone) with internet access
- A current version of a major web browser (Chrome, Safari, Firefox, or Edge)
- An active email account that you check regularly
- Software capable of opening PDF and Microsoft Word (.docx) documents (such as Adobe Acrobat Reader, Apple Preview, or Microsoft Word)
- The ability to print or save documents for your records, if you wish to retain personal copies

If your equipment changes in a way that may affect your ability to access or retain electronic records, we will provide notice and an opportunity to consent to the new requirements before continuing.

5. How Electronic Signatures Work at Rise & Shine ABA

When you e-sign a document, you will:

- Receive an email or in-system notification linking you to the document
- Be required to authenticate (typically by logging into the HR system or clicking a unique link sent to your verified email)
- Have the opportunity to review the full document before signing

- Apply your signature by typing your name, drawing your signature, or clicking an "I agree" or signature button — the specific method depends on the platform
- Receive a copy of the signed document by email and through the HR system

Your electronic signature is legally binding and has the same effect as your handwritten signature on a paper document.

6. Record Retention

Signed documents are stored securely in the Rise & Shine ABA HR system and are retained in accordance with applicable law and Company policy — generally for at least six (6) years after the end of your employment or engagement, and longer where required (for example, payroll records and certain tax documents may have longer retention periods). You may request a copy of any document you have signed at any time by contacting HR.

7. Security & Authenticity

Each electronic signature is associated with an audit trail that may include the signer's identity, IP address, timestamp, document version, and authentication method. This audit trail is maintained as part of the record and supports the legal validity of the signature. Do not share your HR system login credentials with anyone, and report any suspected unauthorized access immediately to HR.

8. Notices Required by Law

Some notices required by federal, New York State, or local law must be delivered in a particular form. By consenting to electronic delivery, you agree that — to the maximum extent permitted by law — Rise & Shine ABA may deliver such notices to you electronically. Where law requires paper delivery, paper delivery will be provided regardless of this Consent.

9. Acknowledgment & Consent

By signing below, I acknowledge and agree that:

1. I have read and understand this Electronic Signature & Electronic Records Consent.
2. I have access to the equipment and software described in §4 and am able to receive, review, and retain electronic documents.
3. **I consent to the use of electronic signatures and electronic delivery** for all documents listed in §2 above and for any other employment- or engagement-related document delivered to me by Rise & Shine ABA.
4. **I understand my electronic signature has the same legal effect as a handwritten signature** under the federal E-SIGN Act and the NY Electronic Signatures and Records Act.
5. I understand my right to receive paper copies and to withdraw this Consent at any time, as described in §3.

6. This Consent does not constitute a contract of employment and does not alter my at-will employment status.

EMPLOYEE / CONTRACTOR

Printed Name

Employee ID

Email Address (for electronic delivery)

Phone

Signature

Date Signed

FOR OFFICE USE

Reviewed By (HR)

Date Filed